

Case called, DHR absent, heard the learned counsel for the DHR. The learned counsel for the DHR submits that decree has to be transferred for execution before the Hon'ble II Add'l Subordinate Judge, Coimbatore, Tamilnadu as the Judgment Debtor resides and carried business within the local jurisdiction of the said court.

Heard.

The DHR being the decree holder in O.S No.1930/2021 filed execution petition for recovery of 4,96,959/- (Rupees Four Lakhs Ninety Six Thousand Nine Fifty Nine) in all as against the JDR. He has also filed application under Section 40 of C.P.C-1908 praying for an order to transfer the decree for execution before the jurisdictional II Add'l Subordinate Judge, Coimbatore, Tamilnadu. In the affidavit filed in support of the application, it is specifically stated that the JDR resides and carrying business at present in Coimbatore, Tamilnadu, and therefore the decree is required to be transfer to the jurisdictional II Add'l Subordinate Judge, Coimbatore Tamilnadu for its due execution.

Since the JDR at present is residing and carrying business in Coimbatore, Tamilnadu the decree has to be transferred for its execution as prayed by the DHR on the application. Hence application under Section 40 C.P.C - 1908 is required to be allowed. Accordingly to proceed to pass the following order.

ORDER

Application filed under Section 40 of C.P.C-1908 is hereby allowed.

Consequently the decree passed by this court on 09/11/2022 in O.S No.1930/2021 is ordered to be transferred to the Hon'ble II Add'l Subordinate Judge, Coimbatore, Tamilnadu for its execution.

Office to send the decree to the said court by complying the procedure as per Order - XXI Rule 5 and 6 of C.P.C-1908.

C/C (Shridhar Gopalakrishna Bhat)

XCI Addl. City Civil & Sessions Judge
and Spl. Judge for KPIDFE Cases, Bengaluru.